

1.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC vs CITY OF RIVERSIDE	PETITION FOR WRIT OF ADMINISTRATIVE MANDATE AND TRADITIONAL MANDATE

Tentative Ruling:

The Writ of Administrative Mandate is denied. The parties should be prepared to discuss moving forward with the traditional mandate cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC vs CITY OF RIVERSIDE	DEMURRER ON OTHER PETITION

Tentative Ruling:

Writ of Mandate:

A proceeding for the issuance of a writ of mandate is a special civil proceeding governed by the provisions of CCP § 1063 et. seq. Controlling statutes provide for review of administrative actions and decisions in two types of mandate proceedings: ordinary (traditional) mandate (CCP § 1085) and administrative mandate (CCP § 1094.5.) The type of mandate applicable in any case is determined by the nature of the administrative action or decision to be reviewed. (*Tielsch v. City of Anaheim* (1984) 160 Cal.App.3d 570, 574.)

First Cause of Action for Writ of Administrative Mandate:

An administrative writ may be issued to inquire into the validity of any final administrative order or decision made as the result of a proceeding where a hearing is required to be given and evidence is required to be taken. (CCP § 1094.5(a).) Pursuant to CCP §1094.5, the court's inquiry into the validity of an administrative order or decision shall extend to questions regarding: (1) whether the agency proceeded without or in excess of jurisdiction; (2) whether there was a fair trial; and (3) whether there was any prejudicial abuse of discretion. With narrow exceptions, the court's inquiry under section 1094.5 is limited to the administrative record made before the agency. (*City of Hesperia v. Lake Arrowhead Community Services Dist.* (2019) 37 Cal. App. 5th 734, 766.)

The City argues that the first cause of action is time-barred. A demurrer based on a statute of limitations defense lies only where it appears clearly and affirmatively on the face of the complaint that the claim is barred. (*Committee for Green Foothills v. Santa Barbara Bd. of Supervisors* (2010) 48 Cal. 4th 32, 442.) "While a demurrer based on statute of limitations lies where the dates in question are shown on the face of the complaint, if those dates are missing, there is no ground for a general demurrer. (*United*